



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8716
(SECOND REVISION)
(CORRECTED COPY)

MAR 6 1990

1. Cyrus Foote Mineral Company, Malvern, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to transport packages prescribed herein of a flammable solid in commerce subject to the limitations and special requirements specified herein. This exemption authorizes multi-trip use of DOT 17C drums for transporting lithium metal immersed in oil and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Whittaker - Yardney Power Systems, Waltham, MA. - PTE-1

2. BASIS. This exemption is based on Cyprus Foote Mineral Company's (formerly Foote Mineral Company) applications dated April 20 and July 10, 1989, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon and supplemental correspondence dated December 5, 1989. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Whittaker - Yardney Power Systems's application dated June 15, 1989.

3. HAZARDOUS MATERIALS (Descriptor and class). Lithium metal, ingot, and scrap pressed into bars, classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Lithium metal.

5. REGULATION AFFECTED. 49 CFR 173.28(m).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 17C, 55 gallon steel drum. This packaging is authorized for multi-trip use, between exemption holder's plants on company owned vehicles and via common carrier. The lithium metal, ingot, and scrap pressed into bars must be immersed in neutral oil. The 17C steel drums are not subject to the requirements of 49 CFR 173.28, except for external visual inspection for defects.

8. SPECIAL PROVISIONS.

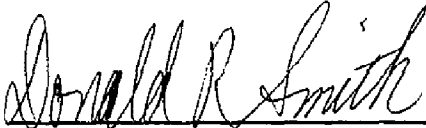
a. A copy of this exemption must be carried on each motor vehicle used to transport packages under the terms of this exemption.

b. Carriers transporting products under the terms of this exemption must have a rating of "Satisfactory" or "Conditional" from the Federal Highway Administration.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of packaging or package failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. April 30, 1991.

Issued at Washington, D.C.:



 Alan I. Roberts

Director

Office of Hazardous Materials Transportation

MAR 6 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA